

Court No. - 29

Case :- WRIT - C No. - 22205 of 2019

Petitioner :- Abdul Salam Khan

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Rajesh Kumar Pandey

Counsel for Respondent :- C.S.C., Rajesh Kumar Sachan

Hon'ble Pankaj Mithal,J.

Hon'ble Saral Srivastava,J.

Heard learned counsel for the parties.

The petitioner has challenged the recovery citation dated 28.01.2019 for a sum of Rs.84,797/- as electricity dues.

The submission of learned counsel for the petitioner is that incorrect electricity bill was raised against the petitioner and despite objections to the same, the recovery has been issued without deciding the objections.

Sri Rajesh Kumar Sachan, learned counsel appearing for respondent nos.4 and 5 submits that objections of the petitioner shall be considered and decided by the Executive Engineer concerned within the time fixed by the Court.

In view of the aforesaid facts and circumstances, as the dispute is regarding electricity bill, we ***dispose off*** the writ petition with liberty to the petitioner to file fresh objections in accordance with Clause 6.5 of U.P. Electricity Supply Code, 2005 within a period of two weeks from today before the Executive Engineer concerned.

In case, any objection is filed, the Executive Engineer shall consider and decide the same by a speaking order within a period of one month thereafter and for a period of two months or till the objections are decided, whichever is earlier, no recovery shall be made from the petitioner.

Order Date :- 15.7.2019

Sattyarth